

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                    |                           |                                                        |                                               |                                 |
|--------------------------------------------------|----------------------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Kaitlin Campbell                | Team:<br>Squad #13                                 | CCRB Case #:<br>201800143 | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                    |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 12/30/2017 1:00 AM | Location of Incident:<br>§ 87(2)(b) and § 87(2)(b) | 18 Mo. SOL<br>6/30/2019   | Precinct:<br>44                                        |                                               |                                 |
| Date/Time CV Reported<br>Sat, 12/30/2017 2:21 AM | CV Reported At:<br>IAB                             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 01/04/2018 11:45 AM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. POM Dennis Castro    | 00334  | 948765 | 044 PCT |
| 2. POM Zachary Lavender | 26451  | 950732 | 044 PCT |

| Officer(s)               | Allegation                                                                                      | Investigator Recommendation |
|--------------------------|-------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Dennis Castro    | Discourtesy: Police Officer Dennis Castro spoke discourteously to § 87(2)(b)                    | A . Unsubstantiated         |
| B . POM Zachary Lavender | Discourtesy: Police Officer Zachary Lavender spoke discourteously to § 87(2)(b)                 | B . Unsubstantiated         |
| C . POM Dennis Castro    | Abuse: Police Officer Dennis Castro refused to provide his name and shield number to § 87(2)(b) | C . Unfounded               |

### Case Summary

On December 30, 2017, § 87(2)(b) called 911, was transferred to the NYPD Internal Affairs Bureau (IAB), and filed this complaint, generating original log #17-51577—a spinoff of which (#2018-0151) was forwarded to the CCRB on January 4, 2018.

On December 30, 2017, at approximately 1:00 a.m., § 87(2)(b) was standing on the corner of § 87(2)(b) and § 87(2)(b) arguing with a man with whom she had a past dispute. § 87(2)(b) saw Police Officers Dennis Castro and Zachary Lavender of the 44th Precinct sitting in their car, stopped at a red light. § 87(2)(b) walked up to the officers' car and opened the passenger door. PO Castro said, "What the fuck are you doing?" (**Allegation A: Discourtesy, unsubstantiated**).

§ 87(2)(b) told the officers she was threatened by the man she was arguing with. PO Lavender and PO Castro asked § 87(2)(b) why she did not go home to her apartment and "lock [her] fucking door" (**Allegation B: Discourtesy, unsubstantiated**).

§ 87(2)(b) asked PO Castro for his name and shield number and he refused to provide it (**Allegation C: Abuse of Authority, unfounded**). § 87(2)(b) walked away from the officers and went home.

No arrests were made or summons issued. No video footage of this incident was found.

### Findings and Recommendations

**Allegation (A) Discourtesy: Police Officer Dennis Castro spoke discourteously to § 87(2)(b)**

**Allegation (B) Discourtesy: Police Officer Zachary Lavender spoke discourteously to**

§ 87(2)(b)

According to § 87(2)(b) she was standing on the southeast corner of § 87(2)(b) and § 87(2)(b) in the Bronx, arguing with a drunken man holding a liquor bottle who she thought was her neighbor. § 87(2)(b) and the man were raising their voices and gesticulating at each other. Two women stood to either side of the man and periodically stepped between him and § 87(2)(b) as they argued. The man threatened to "knock on § 87(2)(b)'s door" and said she had "better answer it."

§ 87(2)(b) saw a marked police SUV come to a stop at a red light about ten feet away from her. She waved her arms at the officers, and yelled "Help!" PO Castro of the 44th Precinct looked at § 87(2)(b) and then looked down at his phone. She did not remember whether the window was open. § 87(2)(b) saw the traffic light turn green, ran toward the police car, and—as the car began to drive away—grabbed the handle of the passenger door and pulled it open. PO Castro said, "What the fuck are you doing?" and closed the door.

§ 87(2)(b) told PO Castro through his open window that her neighbor threatened her and briefly explained what had just happened between them. PO Lavender leaned over from the driver's side and said, "Well go upstairs and lock your fucking door," and then PO Castro also told § 87(2)(b) to "lock [her] fucking door." § 87(2)(b) did not say PO Castro and PO Lavender made these statements in either her in-person CCRB phone statement or IAB intake call.

PO Castro and PO Lavender § 87(2)(g) both said that § 87(2)(b) did not try to get the officers' attention before approaching the car and opening the door. Both officers denied that PO Castro said "What the fuck are you

doing?” PO Castro said he said, “What are you doing? Step back,” and closed the door. PO Lavender did not remember what PO Castro said.

PO Castro and PO Lavender denied that they told § 87(2)(b) to go upstairs and “lock [her] fucking door.” PO Castro said he told § 87(2)(b) that if she had a problem with a neighbor in the future, to not follow that person but wait in her apartment and call 911. PO Lavender said he and PO Castro offered to take § 87(2)(b) home in the back of the car and walk her upstairs but that she declined them doing so. PO Lavender said § 87(2)(b) wanted him and PO Castro to arrest the man she had been arguing with and that the officers told her they could not arrest someone because of a noise complaint, which was what PO Lavender understood as § 87(2)(b) § 87(2)(b) s main complaint. PO Lavender said § 87(2)(b) did not say anything about the man threatening her.

Patrol Guide Procedure 203-09 states that an officer should be courteous and respectful when dealing with members of the public (Board Review 01).

§ 87(2)(g) It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

**Allegation (C) Abuse of Authority: Police Officer Dennis Castro refused to provide his name and shield number to § 87(2)(b)**

According to § 87(2)(b) she asked PO Castro to identify himself. PO Castro said “no,” and flipped his shield and name badge over so that they faced his shirt. § 87(2)(b) told PO Castro if he did not give her his name or shield number that she would report him to his sergeant. PO Castro then turned his name badge and shield toward § 87(2)(b) § 87(2)(b) said she memorized his name and shield number and went back upstairs to her apartment and called 911.

According to the recording of the 911 call, § 87(2)(b) called to report harassment by her neighbor and to file a complaint against PO Castro and provided his name and shield number to the 911 operator (Board Review 02).

PO Castro and PO Lavender corroborated that § 87(2)(b) asked PO Castro for his name and shield number but denied that PO Castro said “No,” to § 87(2)(b) when she initially asked to see his shield. Both officers said § 87(2)(b) did not ask PO Castro for his name and shield number more than once. PO Castro said he held out his badge to § 87(2)(b) and said, “My name is Castro. My shield number is 334.” PO Lavender said PO Castro turned on the light inside the car and held his name badge and shield out for § 87(2)(b) to see and that § 87(2)(b) read it out loud.

Patrol Guide Procedure 203-09 states that officers should courteously and clearly state their rank, name, shield number, and command, or otherwise provide them, to anyone who requests you to do so (Board Review 01).

§ 87(2)(g) It is therefore recommended that **Allegation C** be closed as **unfounded**.

### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Castro has been a member-of-service for seven years and this is the first CCRB complaint to which he has been a subject.
- PO Lavender has been a member-of-service for six years and this is the first CCRB complaint to which he has been a subject.

### **Mediation, Civil and Criminal Histories**

- § 87(2)(b) declined to mediate this complaint.
- As of March 8, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]

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Squad No.: 13

Investigator: \_\_\_\_\_  
Signature Print Title & Name Date

Squad Leader: \_\_\_\_\_  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date